

CHICKASAW TRIBAL LEGISLATURE

PASSED

Permanent Resolution Number 18-014

Amendments to Title 8, Chapter 3

of the Chickasaw Nation Code

(Voting Registration and Rights)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 8, Chapter 3 of the Chickasaw Nation Code and finds it necessary to amend said Title and Chapter to help promote clarity.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 8, Chapter 3 of the Chickasaw Nation Code. Additions will be shown in shading and deletions will be shown as stricken. All other Sections of Title 8, Chapter 3 are not affected by this resolution.

SECTION 8-307 **CHALLENGE TO VOTER REGISTRATION ELIGIBILITY, WHEN MADE, HEARING AND DECISION.**

A. A candidate's challenge of a voter's eligibility must be made specifically by name and district, and in writing, stating the cause of challenge, and presented to the Election Secretary/Tribal Registrar. The challenge must be filed no later than ~~ten (10)~~ **fifteen (15)** days prior to the close of voter registration.

B. Registration eligibility disputes shall be heard by the Election Commission no later than ten (10) days prior to the close of voter registration.

C. The decision of the Election Commission on the eligibility of a voter shall be final and in writing, and shall be made within five (5) days of the challenge. The election date shall not be delayed.

SECTION 8-308 **FINAL DECISION APPEALS.**

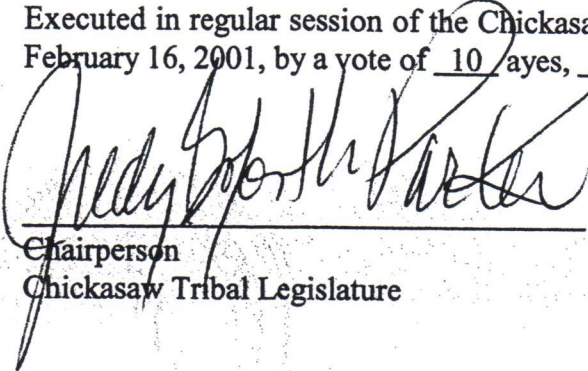
If the final decision of the Election Commission on the eligibility of a voter denies voting privileges, the voter may appeal to the Court from the decision of the Election Commission within ten (10) days of the Election Commission's decision. No ruling by the Court shall delay the date of any election. The ruling of the Election Commission shall be valid until overruled.

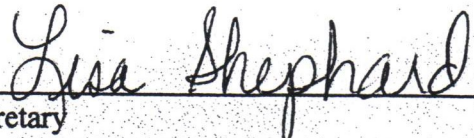
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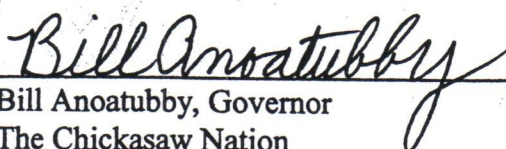
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February 16, 2001

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 16, 2001, by a vote of 10 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 21 2001

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 18-014
Amendments to Title 8, Chapter 3
of the Chickasaw Nation Code
(Voting Registration and Rights)**

Explanation: This resolution approves of amendments to Title 8, Chapter 3 of the Chickasaw Nation Code to help promote clarity.

Requested By: Legislative Committee

Presented By: Lisa Shephard, Chairman
Legislative Committee